



POLICE DEPARTMENT

September 11, 2024

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

Re: CCRB Case No. 202100704 (Incident Date: January 18, 2021) involving Police Officer Michael Mercorio, Tax No. 960937 (DADS No. 2022-26450)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Michael Mercorio and has determined that his actions do not warrant discipline.

In this matter, Police Officer Mercorio assisted other uniformed service members in escorting a handcuffed individual toward an awaiting police vehicle. Moments earlier, said individual assaulted a female in front of her two young children. After he was arrested, the individual sat on the ground and refused to walk to a nearby police vehicle. The individual's continued refusal to comply with lawful orders resulted in uniformed service members, including Police Officer Mercorio, having to carry him toward the police vehicle.

Available BWC footage shows Police Officer Mercorio carrying the handcuffed individual several steps before balling his hand into a fist and cocking back his arm in a motion consistent with throwing a punch. At the same time, Police Officer Mercorio uttered a threatening statement towards the handcuffed individual.

Available BWC footage does not depict what Police Officer Mercorio alleged: that the handcuffed individual attempted to bite Police Officer Mercorio's hand. Nonetheless, Police Officer Mercorio's assertion that he made the threatening gesture and statement in response to potential physical violence is credible. Thus, the officer's response shows his reaction to the threat of being bitten.

Police Officer Mercorio's statement contained an expletive word that would be considered discourteous on its own. However, the word was not uttered in a vacuum; instead, it was used in

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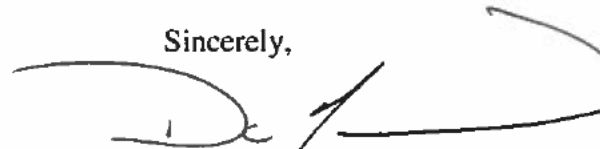
response to potential physical aggression by a perpetrator who had moments earlier violently assaulted a female victim.

Here, Police Officer Mercorio was nearly bitten by a handcuffed individual. This caused Police Officer Mercorio to threaten to use physical force against said individual to stop any future violence. The aggressive and harsh language, coupled with the threatening gesture, was meant to stop the individual to cease any further acts of aggression toward Police Officer Mercorio or any of the other uniformed members of the service at the scene.

Importantly, in the same Investigative Recommendation, the CCRB further acknowledged that the "moment before PO Mercorio threatens to strike [the handcuffed individual] is obscured by officers' arms or backs." In the absence of dispositive BWC footage, the individual's lack of cooperation with the investigation robs the fact finder of any opportunity to determine the veracity of Police Officer Mercorio's allegation that he was nearly bitten on the hand by the handcuffed individual. Thus, in the absence of any dispositive evidence or testimony to the contrary, credit must be given to Police Officer Mercorio's testimony that the handcuffed individual nearly bit him.

Therefore, the Police Commissioner intends to direct that Police Officer Mercorio receive no disciplinary action.

Sincerely,

A handwritten signature in black ink, appearing to read "Anthony S. Marino", is written over a horizontal line.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: Stuart London, Esq



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



September 18, 2024

The Honorable Thomas G. Donlon
Interim Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB Case No. 202100704 (Incident Date: January 18, 2021) involving Police Officer Michael Mercorio, Tax No. 960937 (DADS No. 2022-26450)

Interim Commissioner Donlon:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, June 21, 2024. Pursuant to Paragraph 6 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department, I am responding to Deputy Chief Marino's notification.

On July 2, 2024, appearing before Assistant Deputy Commissioner Jeff Adler, Officer Mercorio accepted the findings of substantiation to the Charges and Specifications in return for a sentence of a Schedule "A" Command Discipline with the forfeiture of five (5) vacation days. Deputy Chief Marino states that after reviewing the evidence in this case, you believe Officer Mercorio's actions do not warrant discipline. The CCRB disagrees with this assessment.

In the instant matter, Officer Mercorio and others responded to a 911 call concerning a domestic dispute. Officer Mercorio aided other officers in transporting a recalcitrant complainant, who sat handcuffed on the ground as officers attempted to lift him up. During the interaction, Officer Mercorio made an unambiguously threatening gesture with his fist, while exclaiming, "I'll fucking knock your teeth out!" The complainant, whom the comments were directed at, was already restrained and in a vulnerable position, unable to mount a credible threat against PO Mercorio or other officers present. In a statement to the CCRB nearly a year later, Officer Mercorio represented that his actions came in response to the complainant attempting to bite him.

Here, as the Department concedes, none of the available body-worn camera footage from the five assembled officers depict such an attempt. Nor does Officer Mercorio make an excited utterance or any other contemporaneous indication he was in imminent danger of being bitten. Nonetheless, your letter, without additional evidence, credits both Officer Mercorio's threat of

force and discourteous statement based solely upon this factually unsupported justification. Even if, as your letter suggests, Officer Mercorio used “aggressive and harsh language, coupled with the threatening gesture, [in order to] stop the individual to cease any further acts of aggression”, his actions still contravene Department policy concerning de-escalation tactics and use of force (Department Provision 6 Letter at 2).

Finally, apparent evidentiary ambiguity, if any, is an issue of fact to be resolved via administrative tribunal or negotiated settlement, not by removing the case from the CCRB’s jurisdiction and absolving the officer of all responsibility. The CCRB asks that the Police Commissioner accept the CCRB’s recommendation and penalty that was duly agreed to by Officer Mercorio, and impose upon Officer Mercorio a Schedule “A” Command Discipline with the forfeiture of five (5) vacation days.

Respectfully submitted,

Andre Applewhite

p.p., Andre Applewhite, Chief Prosecutor
for Jonathan Darche, Executive Director
NYC Civilian Complaint Review Board